

IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

**FRIDAY, THE THIRD DAY OF NOVEMBER
TWO THOUSAND AND TWENTY THREE**

PRESENT

THE HONOURABLE SRI JUSTICE K.LAKSHMAN

CRIMINAL PETITION NO: 10480 OF 2014

Between:

1. TERA CHINNAPA REDDY, HYD, S/o. Peda Ram Reddy, R/o. H.No.1-64, Pinnavoora (V) of Peddavoora Mandal, now residing in plot No.136A, MLA Colony, Venkateshwara Housing Cooperative Society Limited, Road No.2, Banjara Hills, Hyderabad.

...PETITIONER/ACCUSED

AND

1. STATE OF TELANGANA, Rep. by its Public Prosecutor, HIGH COURT AT HYDERABAD
2. The Returning Officer & Spl. Dy. Collector (LA) SRSP., JCRGLIP and Dr.B.R. Ambedkar PCSSP Unit -(X), Bhongir, 87 - Nagarjuna Sagar Assembly Constituency, Nalgonda District (defacto complainant)

...RESPONDENTS

Petition under Section 482 of Cr.P.C., praying that in the circumstances stated in the Memorandum of Grounds of Criminal Petition, the High Court may be pleased to quash the proceedings in C.C.No. 548 of 2013, on the file of the Judicial First Class Magistrate, Miryalguda.

I.A. NO: 2 OF 2014(CRLPMP. NO: 10435 OF 2014)

Petition under Section 482 of Cr.P.C praying that in the circumstances stated in the Memorandum of Grounds of Criminal Petition, the High Court may be pleased to stay all further proceedings in C.C.No.548 of 2013,on the file of Judicial First Class Magistrate, Miryalguda.

This Petition coming on for hearing, upon perusing the Memorandum of Grounds of Criminal Petition and upon hearing the arguments of Sri T. RAJINIKANTH REDDY ,Advocate for the Petitioner and the Public Prosecutor (TG) on behalf of the Respondent No.1 and None Appeared for the Respondent No.2

The Court made the following: ORDER

THE HONOURABLE SRI JUSTICE K. LAKSHMAN

CRIMINAL PETITION No.10480 OF 2014

ORDER:

Heard Sri T. Rajinikanth Reddy, learned counsel appearing for the petitioner and Sri T.V. Ramana Rao, learned Additional Public Prosecutor for the State. Perused the record.

2. This Criminal Petition is filed under Section 482 Cr.P.C., to quash the proceedings in C.C.No.548 of 2013 pending on the file of the Judicial First Class Magistrate, Miryalguda.

3. Respondent No.2 had filed a complaint under Section 200 of Cr.P.C., before the Judicial First Class Magistrate, Miryalguda on 02-11-2012. The same was taken on file vide C.C.No.548 of 2013.

4. In the said complaint, respondent No.2 had alleged that Mr.Eslavath Ramachander Naik, Mr.Kakunuri

Sathyanaarayana, Mr.Ramavath Shanker Naik and Mr.Kondeti Mallaiah have filed a complaint before the Chief Electoral Officer and Ex-Officio Principal Secretary to Government, GA (Elections.F) Department, on 04-09-2012, stating that the petitioner herein had filed false affidavit before respondent No.2 suppressing the actual properties held by his family members.

5. It is further alleged by them that petitioner herein has filed notarized affidavit along with nomination on 27-03-2009 in Annexure-I to Form-26 stating that he and his family members are owning Ac.111.26 gts., of land, suppressing other properties held by the petitioner and his family members. The said complaint dated 04-09-2012 was filed by the aforesaid persons before the Chief Electoral Officer and Ex-Officio Principal Secretary to Government, GA (Elections.F) Department, who in turn forwarded the same to the district Collector, Nalgonda vide Memo No.6945/Elecs.F/2012-1 dated

05-09-2012. The same was forwarded to respondent No.2 for examining the matter and to initiate necessary action. The Revenue Divisional Officer, Miryalguda vide letter dated 19-10-2012 stated that the family members of the petitioner have landed properties at Sangaram, Pinnavoora, Pothunuru, Peddavoora, Lingampally of Peddavoora Mandal, S. Lingotam, Choutuppal of Choutuppal mandal and Ibrahimpetta of Anumula mandal of Nalgonda District, etc., admeasuring Ac.503-30½ gts., on the date of filing of the affidavit. There is suppression of the aforesaid properties by the petitioner. Therefore, respondent No.2 filed the aforesaid complaint.

6. In Section 125A r/w.33-A of Representation of Peoples Act, 1961, the punishment prescribed is imprisonment for a term which may extend to six (6) months or fine or with both. Therefore, the offence alleged against the petitioner is a minor offence.

7. As per Section 468 (2) of Cr.P.C., the limitation prescribed is one year if the offence is punishable with imprisonment for a term not exceeding one year. The petitioner is charged with the offence punishable with imprisonment for a term which may extend to six months or fine, or with both. The complaint has to be filed within a period of one year from the date of commission of offence. In the present case, complaint is not filed within the aforesaid period of limitation.

8. Section 125A of Representation of Peoples Act, 1961 reads as follows:

"Section 125A in The Representation of the People Act, 1951

1/125A. Penalty for filing false affidavit, etc.—A candidate who himself or through his proposer, with intent to be elected in an election,—

(i) fails to furnish information relating to sub-section (1) of section 33A; or

(ii) gives false information which he knows or has reason to believe to be false; or

(iii) conceals any information, in his nomination paper delivered under sub-section (1) of section 33 or in his affidavit which is required to be delivered under sub-section (2) of section 33A, as the case

may be, shall, notwithstanding anything contained in any other law for the time being in force, be punishable with imprisonment for a term which may extend to six months, or with fine, or with both.]”

9. Thus, punishment proposed for the offence under Section 125A of Representation of Peoples Act, 1961 is for a period of six months or with fine or with both. Section 468 of Cr.P.C., deals with Bar to take cognizance after lapse of period of limitation. The same is relevant and it is extracted below:

“Section 468 in The Code Of Criminal Procedure, 1973

468. Bar to taking cognizance after lapse of the period of limitation.

(1) Except as otherwise provided elsewhere in this Code, no Court shall take cognizance of an offence of the category specified in sub- section (2), after the expiry of the period of limitation.

(2) The period of limitation shall be-

(a) six months, if the offence is punishable with fine only

1. Provisions of this Chapter shall not apply to certain economic offences, see the Economic Offences (Inapplicability of Limitation) Act, 1974 (12 of 1974), s. 2 end Sch.

(b) one year, if the offence is punishable with imprisonment for a term not exceeding one year;

(c) three years, if the offence is punishable with imprisonment for term exceeding one year but not exceeding three years.

(3) ¹ For the purposes of this section, the period of limitation in relation to offences which may be tried together, shall be determined with reference to the offence which is punishable with the more severe punishment or, as the case may be, the most severe punishment.]

Perusal of the said provision would reveal that period of limitation prescribed for taking cognizance by the learned Magistrate where the offence punishable with imprisonment for a term not exceeding one year is one year.

10. In the said complaint itself respondent No.2 has specifically mentioned that the petitioner herein has filed notarized affidavit along with nomination on 27-03-2009 in Annexure-I to Form-26 stating that he and his family members are owning Ac.111.26 gts., suppressing other properties held by the petitioner and his family members. Whereas Mr.Eslavath Ramachander Naik and

others have filed complaint on 04-09-2012 with the Chief Electoral Officer and Ex-Officio Principal Secretary to Government, GA (Elections.F) Department. The said complaint was forwarded to respondent No.2 on 05-09-2012. The Revenue Divisional Officer, Miryalguda, furnished information on 19-10-2012. Whereas, respondent No.2 had filed the complaint in November 2012.

11. Other offence alleged against the petitioner herein is under Section 177 of IPC and the punishment prescribed for the said offence is six months or with fine, which may extend to Rs.1,000/- or with both.

12. Therefore, the complaint filed by respondent No.2 is barred by limitation. Without verifying the same, learned Magistrate took cognizance of the same and it is an abuse of process of law.

13. Thus, viewed from any angle, the present complaint filed by respondent No.2 is barred by limitation. However, learned Addl. Public Prosecutor would contend that the cause of action is continuous and respondent No.2 on obtaining information from the RDO on 19-10-2012 filed the said complaint and the same is within limitation, cannot be accepted, in view of the limitation prescribed under Section 468 of Cr.P.C.

14. Without considering the same, learned Magistrate took cognizance of the said offences. It is also apt to note that the petitioner herein did not file copy of the cognizance order and there is no challenge to the same. However, challenge is to the proceedings in C.C.No.548 of 2013 itself.

15. In the light of the aforesaid discussion, considering the limitation prescribed under Section 486 of Cr.P.C., this Court is of the considered view that the proceedings

in C.C.No.548 of 2013 are barred by limitation.
Therefore, the said proceedings cannot go on.

16. In view of the aforesaid discussion, this Criminal Petition is allowed and proceedings in C.C.No.548 of 2013 pending on the file of the Judicial First Class Magistrate, Miryalguda against the petitioner herein are quashed.

Miscellaneous petitions, if any, pending in this criminal petition, shall stand closed.

SD/- N.CHANDRA SEKHAR RAO
ASSISTANT REGISTRAR

//TRUE COPY//


SECTION OFFICER

To,

1. The Court of Judicial First Class Magistrate, Miryalguda.
2. Two CCs to the Public Prosecutor, High Court for the State of Telangana at Hyderabad.[OUT]
3. The Returning Officer & Spl. Dy. Collector (LA) SRSP., JCRGLIP and Dr.B.R. Ambedkar PCSSP Unit -(X), Bhongir, 87 - Nagarjuna Sagar Assembly Constituency, Nalgonda District.
4. One CC to SRI. T. RAJINIKANTH REDDY, Advocate [OPUC]
5. Two CD Copies

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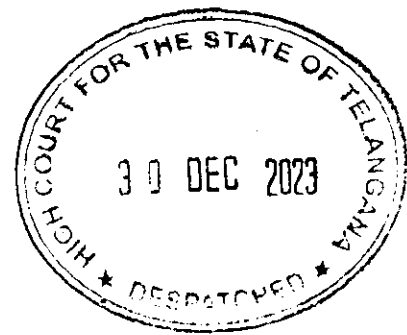


HIGH COURT

DATED:03/11/2023

ORDER

CRLP.No.10480 of 2014



ALLOWING THE CRIMINAL PETITION

⑧ VW
21/12/23